As of: March 21, 2025 **Received:** March 15, 2025 **Status:** [redacted] **Tracking No.** m8b-2isb-kb19 **Comments Due:** March 15, 2025 **Submission Type:** API

PUBLIC SUBMISSION

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-8349
Comment on FR Doc # 2025-02305

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General Comment

With all due respect, the deliverables of machine learning algorithms (Artificial intelligence, or AI) have yet to live up to their promises. The private sector entities promoting AI and requesting that they be given an exception to regulation are asking for special privileges that they do not deserve.

First and foremost, AI products have yet to produce any tangible or financial benefit. In 2024, Goldman Sachs released a report titled "Gen AI: Too Much Spend, Too Little Benefit?" in which Jim Corvello, head of Goldman Sachs's global equity research, was quoted as saying "AI technology is exceptionally expensive, and to justify those costs, the technology must be able to solve complex problems, which it isn't designed to do." Corvello goes on to say that "eighteen months after the introduction of generative AI to the world, not one truly transformative—let alone cost-effective—application has been found."

The energy consumption required to run these algorithms requires a substantial amount of energy that would be better suited serving American consumers in their homes and businesses that create products of actual value. Businesses and consumers cannot afford to shoulder the burden of the increased energy prices required to support AI development.

Furthermore, the private sector developing AI has claimed that their products have reached a plateau that cannot be surpassed without violating U.S. copyright laws by allowing copyrighted works to be used to train their algorithms. This use of copyrighted works to create a commercial product does not pass the four factors judges use to determine fair use. The purpose and character of the use in training AI models with copyrighted works is to replicate the output of the original authors. Training AI models requires the entirety of the copyrighted work to be ingested and may result in a substantial portion of the author's work being duplicated by the algorithm for commercial purposes. This would have a sever detrimental effect upon the potential market for the original author. The fair use doctrine is not applicable in this instance and does not justify undercutting the profits of authors—both individual and corporate—through the theft of their intellectual property.

Finally, it must be noted that machine learning algorithms are by their very definition incapable of following professional, ethical, and legal protocols surrounding sensitive information--including the intellectual property rights of tribal governments to control culturally sensitive information and the obligation of healthcare providers, law enforcement, schools, and other entities to protect the personal identifying information (PII) of private citizens. Any dataset that is used to train a machine learning algorithm becomes subject to regurgitation by the algorithm. Without restrictions and regulations to prevent sensitive information from being used to train these algorithms, anything and everything could be used to respond to an AI prompt. These "burdensome requirements" exist to protect sensitive data and must not be bypassed for any reason.

Regulations exist to protect the people of the United States of America from the greed and laziness of a select few. No executive order can erase the American people's right to sovereignty, self-determination, and the enumerated rights of the U.S. Constitution and the U.S. Code, including but not limited to: the intellectual property rights guaranteed under 17 U.S. Code Chapter 1; the privacy rights guaranteed under the Health Insurance Portability and Accountability Act of 1996 (HIPAA), the Fair Credit Reporting Act, the Family Educational Rights and Privacy Act (FERPA), the Gramm-Leach-Bliley Act, etc.; and tribal rights to cultural sovereignty under their respective treaties. Any one of these rights may be in jeopardy if the regulatory process were bypassed to allow for unchecked development of machine learning algorithms.

As a U.S. citizen, an author of copyrighted intellectual works, and a professional who works in the information sector, I vehemently oppose this Plan to place the pipe dream of private sector AI innovation above the existing rights of all other private sector industries and private citizens. The AI sector does not deserve special treatment. Quite the opposite: they have an expensive, unreliable product that has yet to produce any transformative innovation.

Rather than remove any existing regulations, the National Science Foundation should turn this situation around: the burden of proof should be on the companies that are producing these machine learning algorithms. Make them prove that their product—-as it stands--has tangible and lasting value. This is a high burden of proof that, in my estimation, Silicon Valley has yet to meet. If, for any reason, the AI industry is able to prove its usefulness and value, then it should be regulated like everything else--without violating copyright and privacy law.